

**CHAPTER clxxxv.**

An Act to empower the mayor aldermen and burgesses
of the borough of Worthing to construct tramways in
and adjacent to the borough and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the borough of Worthing (in this Act called "the borough") is a borough subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council are the urban district council for the district thereof and are the local authority for the purposes of the Tramways Act 1870 :

And whereas it is expedient that the Corporation should be authorised to lay down construct and maintain tramways in the borough and in the parish of Lancing which adjoins the borough and to place and run carriages on the tramways by this Act authorised :

And whereas it is expedient that the Corporation be authorised to make the street works in the borough in this Act set forth :

And whereas it is expedient that borrowing powers for the purposes of this Act be conferred on the Corporation :

And whereas it is expedient that the other provisions in this Act contained should be authorised :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas estimates have been prepared by the Corporation of the cost of the purchase of lands and the construction of the

A.D. 1903. tramways and works by this Act authorised and such estimates are
— as follows:—

For the construction of tramways and for tramway purposes including the purchase of lands one hundred and twenty-five thousand seven hundred and twenty-eight pounds;

For street works including the purchase of lands forty thousand pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-fourth day of November one thousand nine hundred and two after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the *Worthing Gazette* a newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate of the borough:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and three being not less than fourteen days after the deposit in Parliament of the Bill for this Act:

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines and levels of the tramways and street works by this Act authorised and the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessces and of the occupiers of and describing those lands have been deposited with the clerk of the peace for the county of Sussex and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the

advice and consent of the Lords Spiritual and Temporal and Commons A.D. 1903.
in this present Parliament assembled and by the authority of the
same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the *Worthing Corporation* Short title.
(*Tramways*) Act 1903.

2. The Lands Clauses Acts (except section 127 of the Incorporation of
Lands Clauses Consolidation Act 1845) ; general Acts.

Section 3 (Interpretation of terms) section 19 (Local authority
may lease or take tolls) and Parts II and III of the *Tramways*
Act 1870 so far as the same are applicable for the purposes of and
not varied by or inconsistent with this Act are hereby incorporated
with and form part of this Act.

3. In this Act unless the context otherwise requires— Interpretation.

Terms to which meanings are assigned by any Act wholly or
partially incorporated with this Act have the same
respective meanings unless there be something in the
subject or context repugnant to such construction ;

“The Corporation” means the mayor aldermen and burgesses
of the borough ;

“The tramways” means the tramways authorised by this
Act ;

“Tramway revenue” includes all revenue of the Corporation
arising from tramways ;

“Mechanical power” includes steam electrical and every
other motive power not being animal power ;

“Engine” includes motor ;

“Statutory security” means any security in which trustees
are for the time being by or under any Act of Parliament
passed or to be passed authorised to invest trust money
(except any security of the Corporation) and any mort-
gage bond debenture debenture stock stock or other
security authorised by or under any Act of Parliament
passed or to be passed of any local authority within
the meaning of section 34 of the *Local Loans Act* 1875
except as before excepted and except annuities rent-
charges and securities payable to bearer ;

“Daily penalty” means a penalty for each day on which an
offence is continued after conviction therefor.

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TRAMWAYS.

Power to
make tram-
ways.

4. Subject to the provisions of this Act the Corporation may make lay down form and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited sections and in all respects in accordance with those plans and sections together with all necessary and proper apparatus appliances works and conveniences connected therewith the following tramways (that is to say) :—

Tramway No. 1 (3 miles 3 furlongs 6·13 chains or thereabouts in length whereof 1 mile 4 furlongs 3·69 chains or thereabouts will be single line and 1 mile 7 furlongs 2·44 chains or thereabouts will be double line) wholly situate in the borough and parish of Worthing commencing at the intersection of Elm Grove and Tarring Road and terminating in Brighton Road at the point where the boundary of the borough crosses that road :

Tramway No. 2 (3 furlongs 4·24 chains or thereabouts in length whereof 2 furlongs 2·84 chains or thereabouts will be single line and 1 furlong 1·40 chains or thereabouts will be double line) wholly situate in the parish of Lancing commencing by a junction with Tramway No. 1 at the point of termination thereof as herein-before described and terminating in Lancing Road at South Street Lancing :

Tramway No. 3 (1 mile 3 furlongs 3·58 chains or thereabouts in length whereof 6 furlongs 0·54 chain or thereabouts will be single line and 5 furlongs 3·04 chains or thereabouts will be double line) wholly situate in the borough and parish of Worthing commencing by a junction with Tramway No. 1 in Brighton Road at a point thereon near Ham Road and terminating in Chapel Road by a junction with Tramway No. 1 at a point thereon $2\frac{1}{2}$ chains or thereabouts south of Newland Road :

Tramway No. 4 a junction tramway (double line 2·90 chains or thereabouts in length) wholly situate in the borough and parish of Worthing commencing in Ham Road by a junction with Tramway No. 3 and terminating in Brighton Road by a junction with Tramway No. 1 :

Tramway No. 5 (7 furlongs 4·30 chains or thereabouts in length whereof 3 furlongs 7·66 chains or thereabouts will be single line and 3 furlongs 6·64 chains or thereabouts will be double line) wholly situate in the borough and parish of Worthing

commencing in Chapel Road by a junction with Tramway No. 3 near Newland Road and terminating in the road leading from Worthing to Horsham at a point opposite the easternmost corner of Broadwater Green : A.D. 1903.
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Tramway No. 6 (1 mile 4 furlongs 4·70 chains or thereabouts in length whereof 3 furlongs 2·62 chains or thereabouts will be single line and 1 mile 1 furlong 2·08 chains or thereabouts will be double line) wholly situate in the borough and parish of Worthing commencing in Warwick Street by a junction with Tramway No. 1 near South Place and terminating in Tarring Road by a junction with Tramway No. 1 near Heene Road :

Tramway No. 7 (a double line 4·60 chains or thereabouts in length) wholly situate in the borough and parish of Worthing commencing in Chapel Road by a junction with Tramway No. 1 near Ann Street and terminating in South Street by a junction with Tramway No. 6 at a point thereon 3½ chains or thereabouts south of Liverpool Road :

Tramway No. 8 a junction tramway (single line 2·12 chains or thereabouts in length) wholly situate in the borough and parish of Worthing commencing in Tarring Road by a junction with Tramway No. 1 and terminating in Heene Road by a junction with Tramway No. 6.

5. The tramways shall be constructed on a gauge of three feet and six inches and there shall not be run thereon carriages or trucks adapted for use on railways : Gauge of tramways.

Provided that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on the tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on such tramways shall exceed six feet and six inches in width.

6. The following tramways or portions of tramway (that is to say) :—

So much of Tramway No. 3 as is proposed to be laid in Brighton Road between Navarino Road and Ham Road ;

So much of Tramway No. 3 as is proposed to be laid in Ham Road between Lyndhurst Road and a point 6½ chains or thereabouts north of Lyndhurst Road ;

So much of Tramway No. 3 as is proposed to be laid in Ham Road and Chesswood Road between a point ½ chain or thereabouts westward from Ham Road and a point ½ chain or thereabouts southward from Chesswood Road ;

Certain tramways not to be constructed until streets or roads widened.

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So much of Tramway No. 6 as is proposed to be laid in Heene Road between the western side of Cowper Road and a point 1 chain or thereabouts northward therefrom ;

shall not be constructed unless and until the carriageways of the portions of streets or roads in which such portions of the tramways are proposed to be laid are widened to the extent and in the manner shown upon the deposited plans.

Provisions
as to tram-
ways in
Chapel Road.

7. The tramways shall be so constructed opposite to the head post office in Chapel Road that a space of not less than six feet and two inches shall intervene between the outside of the footpath on the side of the road on which such post office is situate and the outside of the cars passing such post office and cross-overs shall be constructed connecting one tramway with the other so that cars may be diverted from the tramway nearest to the footpath to the other tramway and the Corporation shall give instructions to their officers and servants to divert cars accordingly whenever carriages are standing at the door of the post office and at any other times when necessary for avoiding interference with access thereto and that no cars shall be stopped in front of Market Street.

Provisions as
to completion
of portion of
Tramway
No. 1 and
Tramway
No. 2

8. The powers of the Corporation for the construction of Tramway No. 2 and so much of Tramway No. 1 as lies eastward of a point nine yards east of the junction of High Street and Brighton Road shall cease and determine unless the said tramway and portion of tramway be completed by the Corporation and certified by the Board of Trade to be fit for public traffic concurrently with or within six weeks after the completion by the British Electric Traction Company Limited of the line of tramways which that company are authorised to construct and reconstruct by the Hove Worthing and District Tramways Act 1903 to South Street Lancing or before the first day of January one thousand nine hundred and six whichever shall be the longer period.

Period for
completion
of tramways.

9. If the tramways be not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the said tramways respectively as is then completed.

Inspection
by Board of
Trade.

10. No part of the tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade.

11. If and whenever after the passing of this Act the level of any road along or across which any part of any of the tramways is laid or authorised to be laid is altered the Corporation may and shall from time to time alter or (as the case may be) lay the rails of the tramways so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

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 Tramways
 to be kept
 on level of
 surface of
 road.

12. The rails of the tramways shall be such as the Board of Trade may approve.

As to rails
 of tramways.

13. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall before they proceed to open or break up any road for the purpose of constructing or laying down any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down or renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement. A copy of the said plan and statement so far as the same relate to the tramways to be constructed outside the borough shall at the same time as the said plan and statement are laid before the Board of Trade be delivered by the Corporation to the rural district council of Steyning West.

Further pro-
 visions as to
 construction
 of tramways.

14.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for
 not main-
 taining rails
 and roads.

(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough or by the parish council of the parish of Lancing or by twenty inhabitant ratepayers of that parish that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the

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 default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Cross-overs
to be con-
structed in
certain cases.

15. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

16.—(1) The Corporation may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Corporation.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Corporation

within three weeks after receiving the notice from the Corporation A.D. 1903.
express their objection thereto.

(4) The Corporation may form junctions between the tramways and any tramways without the borough which can be worked in connexion therewith but only with the consent of the owners and the lessees (if any) of such tramways.

(5) No such work shall be constructed outside the borough except with the consent of the local and road authority within whose jurisdiction such work would be constructed and the request for such consent shall be made in writing under the hand of the town clerk and shall be accompanied by a plan and section of the work for which the consent is requested.

17. Where by reason of the execution of any work affecting the surface or soil of any road along which any tramway or portion of tramway is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or portion of tramway the Corporation may construct on the same or any adjacent road and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway in lieu of the tramway or portion of tramway so removed or discontinued.

Temporary tramways to be made where necessary.

18. For the purpose of constructing or reconstructing or altering any tramway in any street or road the Corporation may increase the width of the roadway of such street or road by reducing the width of the footway on each or either side of such street or road Provided that no footway be so reduced to less than six feet in width Provided also that in the case of any street or road outside the borough the Corporation shall before exercising the powers of this section obtain the consent of the road authority having jurisdiction over such street or road.

Corporation may reduce width of footway for constructing tramway.

19. Every sanitary authority without the borough shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of any sanitary authority as if the same were a pipe for the supply of gas or water.

Sanitary authority to have access to sewers.

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Application
of road
materials
excavated in
construction
of works.

20. Any paving metalling or material excavated by the Corporation in the construction of the tramways from any road under the jurisdiction or control of any other road authority may be applied by the Corporation so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of any tramway within the district of such road authority of so much of the roadway on either side of such tramways as the Corporation are by section 28 of the Tramways Act 1870 required to maintain and the Corporation shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Corporation and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Provisions
as to motive
power.

21. The carriages used on the tramways may be moved by animal power or by mechanical power subject to the following provisions (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power :
- (3) The Corporation or any company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a

further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof: A.D. 1903.

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or such company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public; may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

22. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:— Special provisions as to use of electrical power.

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties

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and the currents therein whether such lines do or do not use the earth as a return :

- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return shall have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Corporation.

Power to
attach
brackets &c.
to buildings.

23. The Corporation may with the consent of the owner of any building attach to that building such brackets rosettes wires and apparatus as may be required for the working of the tramways by mechanical power Provided that--

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard

to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid : A.D. 1903.

- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :
- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building :
- (4) No such brackets wires rosettes or apparatus shall be affixed to any railway bridge or to any building or premises of the London Brighton and South Coast Railway Company without the previous consent and approval of that company and in the event of the company so consenting and approving and of the company subsequently altering or reconstructing any such bridge or building then the Corporation shall at their own expense remove and refix all such brackets wires rosettes or apparatus as may be necessary to the approval of such railway company.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

24. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the street between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramway. Apparatus used for mechanical power to be deemed part of tramway.

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Waiting-
rooms or
sheds.

25. The Corporation may erect and maintain waiting-rooms or sheds for the accommodation of passengers at such places as they may determine or if outside the borough as may be agreed upon with the local and road authority in whose district such works will be situate.

For pro-
tection of
London
Brighton and
South Coast
Railway
Company.

26. Notwithstanding anything in this Act contained the following provisions shall have effect for the protection of the London Brighton and South Coast Railway Company (herein-after called "the company") unless otherwise agreed between the company and the Corporation :—

(1) In constructing Tramway No. 5 by this Act authorised where the same is intended to be laid upon the bridge carrying Broadwater Road over the railway and sidings of the company (herein-after referred to as "the bridge") the following provisions shall have effect :—

(A) The Corporation shall not without the consent of the company in any way alter or interfere with the structure of the bridge and they shall so construct and maintain the said tramway over the bridge as not injuriously to affect the same and according to plans sections and specifications to be previously submitted to and approved by the engineer of the company but such approval shall not be unreasonably withheld ;

(B) In the event of any injury being caused to the bridge by the construction maintenance repair use or removal of the said tramway or the works or apparatus by this Act authorised to be laid upon the bridge the company may at the expense of the Corporation restore such bridge or the part or parts thereof which shall be injured to as good a state and condition as the same were in before such injury was occasioned ;

(C) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company by or by reason of the construction or failure of the said tramway or the works or apparatus aforesaid or by or by reason of any act or omission of the Corporation or their contractors or any person employed by either of them in the construction of the said tramway and the Corporation shall effectually indemnify the company

from all claims and demands upon or against them by reason of such execution or failure or of any such act or omission ;

(D) The Corporation shall pay to the company the reasonable expense of the employment by them during the construction or repair by the Corporation of the said tramway or the works or apparatus as aforesaid of such number of inspectors watchmen and signalmen appointed by the company as may be necessary for preventing interference with or obstruction or danger to the traffic of the company from any of the operations acts or defaults of the Corporation or their contractors or of any person in their employ or otherwise but the appointment by the company of such inspectors watchmen and signalmen shall not in any way relieve the Corporation from the liabilities imposed upon them by this section ;

(E) Whenever and so often as the company shall require to widen lengthen reconstruct alter or repair the bridge or to widen or alter their railway thereunder or to lift or support the bridge owing to the subsidence thereof and it shall become necessary for effecting any of such purposes that the working and user of any portion of the said tramway over the bridge shall be wholly or partially stopped or delayed or that such portion of the said tramway should be temporarily diverted taken up or removed the company shall (except in case of emergency) give to the Corporation fourteen clear days notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of such portion of the said tramway shall be temporarily stopped or delayed or the said tramway shall at the expense of the Corporation be temporarily diverted or taken up or removed accordingly but only for so long as may be absolutely necessary for effecting such purposes and without the company being liable for any compensation claims demands damages costs or expenses for or in respect of such stoppage delay or diversion taking up or removal or in any way relating thereto Any works in connexion with the reinstatement of the said tramway shall be carried out to

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- the reasonable satisfaction and under the supervision of the Corporation ;
- (F) The Corporation shall from time to time pay to the company any additional expense which may be properly and reasonably incurred by the company in effecting any such widening lengthening strengthening reconstruction alteration repair lifting or supporting as is mentioned in the preceding subsection by reason of the existence of the said tramway ;
- (G) If and whenever the engineer of the company (or in case of difference between such engineer and the Corporation an arbitrator) shall be of opinion that any strengthening reconstruction or alteration of the bridge is necessary owing to the carriages or other vehicles used or intended to be used on the said tramway being or being intended to be moved by steam electrical or any mechanical power the company may effect and complete such strengthening reconstruction or alteration and the Corporation shall repay to the company all moneys properly and reasonably expended by them in or about the execution of the works aforesaid ;
- (H) Any additional expense incurred by the company in the maintenance of the structure of the bridge by the construction or user of the tramways or works by this Act authorised shall be borne by the Corporation ;
- (I) The Corporation shall not construct any passing-places on the bridge without the previous consent in writing of the company ;
- (J) All works which may be necessary for working the said tramway by mechanical power over the bridge shall be constructed and maintained by the Corporation to the reasonable satisfaction of the engineer of the company ;
- (K) The Corporation shall not in any manner in the execution maintenance or repair of the tramway works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway belonging to or worked by the company ;
- (2) Notwithstanding anything shown on the deposited plans Tramway No. 1 shall be constructed as a single line between the eastern side of Grand Avenue and the eastern side of

Valencia Road and the Corporation shall not permit any car to stop or stand on the said tramway between the said points: A.D. 1903.

- (3) The Corporation shall not permit any car to stand on the said Tramway No. 1 opposite the entrance to or so as to interfere with the access to the Worthing Station of the company :
- (4) The Corporation shall not permit any car to stand on the double line portion of Tramway No. 3 as shown on the deposited plans at the termination of the said tramway opposite to the entrance to the goods yard of the company :
- (5) The Corporation shall erect the posts for carrying the overhead equipment for working the tramways in such position so far as the same are intended to be erected in the roadway opposite the Worthing or West Worthing Stations of the company or upon the bridge or opposite to the entrance to the goods yard of the company as to cause as little interference as may be with the access to the said stations or goods yard and so as not in any way to interfere with the clear view of the signals in connexion with the company's railway under the bridge :
- (6) Any matter in difference between the Corporation and the company under any of the provisions of this section shall be referred to an arbitrator to be agreed upon or in default of agreement to be appointed by the Board of Trade on the application of either party.

27. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraph lines of Postmaster-General.

28. In the event of any of the tramways being worked by electricity the following provisions shall have effect:— For protection of Post Office telegraph lines.

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all

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descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3)—(A) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General other than repairs the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work :

(B) Any difference which arises between the Postmaster-General and the Corporation or their agents with respect to any requirements so made shall be determined by arbitration :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the

Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the

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Corporation or their agents were a company within the meaning of that Act :

- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression " the Corporation " includes their lessees and any person owning working or running carriages on any of the tramways :
- (13) If the Corporation use electrical power as the motive power of any omnibuses or motor cars run by them under the provisions of the section of this Act of which the marginal note is " Power to run omnibuses or motor cars " the Corporation shall in such user (unless such power is entirely contained in and carried along with such omnibuses and motor cars in such a manner that no magnetic or other influence is created which is likely to cause injurious affection to a telegraphic line belonging to or used by the Postmaster-General) be subject to the provisions of this section so far as the same are applicable.

Supply of
electricity
for traction
purposes.

29. The Corporation on the one hand and any company or person having power to use electrical energy for traction purposes on the other hand may enter into and carry into effect agreements for and in relation to the supply of electrical energy to or by the Corporation by or to such company or person for traction purposes.

Power to
Corporation
to work
tramways.

30. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of the tramways and in respect of the use of such carriages and may provide maintain and use such buildings carriages trucks machinery electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by mechanical power and all such stables horses and harness as may be required for working the tramways or any of them by animal power but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Lands for
generating
station.

31. The Corporation may appropriate and use the lands described in the First Schedule to this Act for the purpose of constructing maintaining and using thereon a station or stations for generating electrical energy but nothing in this Act shall authorise

the Corporation to construct any station for generating electric power elsewhere than on the said lands. A.D. 1903.

The Corporation shall charge the account for which the said lands are appropriated with a reasonable sum by way of purchase money for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

32. Subject to the provisions of this Act the Corporation may on any lands for the time being belonging to them construct maintain and use sub-stations with all necessary and convenient plant and appliances for transforming using and distributing electricity for traction on the tramways but nothing in this section shall empower the Corporation to create or permit a nuisance on any such lands. Sub-stations.

33. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels. Traffic upon tramways.

34. The Corporation or their lessees may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare any fraction of a mile shall be deemed a mile but in no case shall the Corporation or their lessees be bound to charge a less sum than one penny. Rates for passengers.

35. The Corporation or their lessees shall not be bound to carry unless they think fit passengers' luggage exceeding twenty-eight pounds in weight nor any animals goods minerals or parcels. Corporation not bound to carry goods.

36. In case the Corporation or their lessees carry animals goods minerals or parcels (other than passengers' luggage not exceeding twenty-eight pounds in weight) they may and as respects any tramway outside the borough when required by the local authority shall carry the same in separate carriages or separate parts of carriages set apart for that purpose. Provision as to carriage of animals goods &c. in separate carriages.

37. The Corporation or their lessees may demand and take in respect of any animals goods materials articles or things conveyed by them on the tramways including every expense incidental to the conveyance any rates or charges not exceeding the rates specified in the Second Schedule to this Act. Animals and goods.

38. The rates and charges by this Act authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Payment of rates and charges.

A.D. 1903. Corporation may by notice to be annexed to the list of rates and charges appoint.

Passengers' luggage.

39. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof. All such personal luggage shall be carried at the responsibility of the passenger and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

As to fares on Sundays and holidays.

40. The Corporation or their lessees shall not take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary week days.

Cheap fares for labouring classes.

41.—(1) The Corporation or their lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance provided that the Corporation shall not be bound to accept a less sum than one penny. On Saturdays the Corporation or their lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

Periodical revision of rates and charges.

42. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough or by the Corporation or by the parish council of the parish of Lancing that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways in the borough or parish of

Lancing respectively or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Act authorised.

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43. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross-streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

44. The provisions of the Tramways Act 1870 relating to the making of byelaws by the Corporation with respect to the rate of

Amendment
of Tramways-
Act 1870 as

A.D. 1903. speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines or carriages are to be driven or propelled on the tramways under the authority of this Act but the Corporation may if they think fit make byelaws under the provisions of the Tramways Act 1870 for restricting the rate of speed to a lower rate than that so authorised.

Orders &c. of Board of Trade. **45.** All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Recovery of penalties. **46.** Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Power to enter into working agreements. **47.** The Corporation may enter into and carry into effect agreements with the owner and lessee of any tramways in any adjacent district which can be worked with the tramways and with the local authority of such district for or in relation to all or any of the following purposes with respect to any tramways owned or leased by them respectively (that is to say) :—

The maintenance and management thereof;

The use and working thereof;

The exercise of running powers thereover;

The interchange of traffic thereon;

The fixing subject to the authorised rates and charges and the collecting and apportionment of the tolls rates charges receipts and revenues levied taken or arising in respect of traffic thereon;

The supply and maintenance by the working body under and during the continuance of any such agreement for the working of any such tramways of rolling stock or motive power and plant necessary for the purposes of such agreement.

Agreements with local authorities &c. as to construction &c. of tramways. **48.—(1)** The Corporation on the one hand and any company authorised to construct tramways which can be worked in connexion with the tramways or any of them on the other hand may enter into and carry into effect agreements and arrangements with respect to constructing maintaining repairing and renewing any of such tramways or of the rails plates sleepers tubes wires posts and brackets connected with such tramways and their working by mechanical

power and the use of such power upon such tramways or any part thereof or the alteration of the widths of roads or streets and with respect to the payment of the expenses thereof (such expenses if incurred by a local authority to be deemed to be expenses incurred under the Tramways Act 1870) and in regard to facilitating the passage of carriages and traffic over and along the same or any parts thereof. A.D. 1903.

(2) The Corporation may enter into and carry into effect agreements with any local authority authorised so to do with respect to any matters upon which the Corporation are by this section authorised to enter into agreements with any company.

49. Notwithstanding anything contained in the Tramways Act 1870 the Corporation may lease the tramways for any period or periods not exceeding forty-two years in the whole upon such terms and conditions as may be agreed upon between the Corporation and any company or person taking a lease of the tramways. Power to lease for period beyond twenty-one years.

50. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any tramway of the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Corporation shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

51. The Corporation may within the borough provide and run omnibuses or motor cars in connexion with the tramways when the running of carriages thereon is impracticable or during the construction reconstruction alteration or repair thereof or in extension of all or any of the tramways or for the purpose of connecting together any of such tramways and also for testing the amount of traffic along any route or between any particular points and may demand and recover tolls and charges for the use of such omnibuses or motor cars and may provide hire and maintain all necessary plant for the purposes aforesaid and may dispose of such plant as may become unnecessary : Power to run omnibuses or motor cars.

Provided always that the Corporation shall not use electrical energy as the motive power on such omnibuses or motor cars unless

A.D. 1903. the electrical energy is entirely contained in and carried along with the omnibuses or motor cars.

Provision as
to general
Tramway
Acts.

52. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised in respect of any of the tramways.

STREET WORKS.

Power to
execute
street works.

53. Subject to the provisions of this Act the Corporation may in the lines and situations and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference make and maintain all or any of the following street works (that is to say) :—

Work A.—A widening of Heene Road and Tarring Road commencing in Heene Road at a point 1 chain or thereabouts south of Tarring Road and terminating in Tarring Road at a point 1 chain or thereabouts east of Heene Road :

Work B.—A widening of Chapel Road on the west side thereof between Winton Place and a point 1 chain or thereabouts north from Stoke Abbott Road :

Work C.—A widening of Chapel Road on the west side between Ambrose Place and Liverpool Gardens :

Work D.—A widening of Montague Street on the southern side and South Street on the western side and Marine Parade on the northern side commencing in Montague Street at a point $1\frac{1}{2}$ chains or thereabouts westwards from South Street and terminating in Marine Parade at the eastern side of the County Club :

Work E.—A widening of South Street aforesaid on the eastern side thereof and of Marine Parade on the northern side thereof commencing at a point in South Street 8 yards or thereabouts northward of the northern side of Montague Street and terminating at a point in Marine Parade at or near the eastern entrance gate to the Marine Hotel :

Work F.—A widening of Heene Road on its eastern side from Cowper Road for a distance of 1 chain or thereabouts northward therefrom :

Work G.—A widening of Brighton Road on the north side thereof between Navarino Road and Ham Road :

Work II.—A widening of Ham Road on the western side thereof between Lyndhurst Road and a point $6\frac{1}{2}$ chains or thereabouts north of Lyndhurst Road : A.D. 1903.

Work I.—A widening of Ham Road and Chesswood Road commencing in Chesswood Road at a point half a chain or thereabouts westward from Ham Road terminating in Ham Road at a point half a chain or thereabouts south of Chesswood Road.

54. For the protection of Tamplin and Sons Brewery Brighton Limited or other the owners for the time being of the property known as the Marine Hotel Worthing the following provisions shall unless otherwise agreed between the Corporation and the said owners be observed and have effect (that is to say) :— For protection of owners of Marine Hotel.

- (1) Notwithstanding anything in this Act contained the Corporation shall not enter upon take or use any part of the properties numbered 44 and 44A on the deposited plans in the borough and parish of Worthing nor reduce the width of the footpath running along the western side of the said properties :
- (2) No part of Tramway No. 6 by this Act authorised shall be laid in South Street and the Marine Parade between a line drawn across South Street in continuation of the northern side of Montague Street and a line drawn across the Marine Parade in continuation of the eastern side of Bath Place unless and until South Street shall have been widened on the western side thereof from Montague Street to the Marine Parade to the line marked on the deposited plans “ extent of widening ” :
- (3) No stopping or passing place shall be appointed or constructed upon the part of Tramway No. 6 described in the last preceding subsection of this section :
- (4) In South Street between Montague Street and the Marine Parade Tramway No. 6 shall be constructed as a double line or interlacing line and be laid in the centre of the road as so widened as aforesaid and any posts erected for overhead traction in such part of South Street shall be placed in the centre or on the west side of the widened road :
- (5) No waiting-room shed or urinal shall be erected by the Corporation on the west side of South Street between Montague Street and the Marine Parade.

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Power to
make junc-
tions
between
existing and
new streets
&c.

55. Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the street works or any of them and as part and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said works or any of them and may make alterations of any existing streets for the purpose of connecting the same with the said works or any of them or of crossing under or over the same or any of them or otherwise Provided always that the Corporation shall make compensation to the owners and occupiers of and all other parties interested in any lands or houses injuriously affected by any alteration of the level of any existing street under the powers of this section.

Temporary
stoppage of
streets.

56. The Corporation may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than foot-passengers bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time The Corporation shall provide reasonable access for all persons so bonâ fide going to or returning from any such house.

Power to
alter steps
areas pipes
&c.

57. The Corporation within the extent of widening authorised by this Act and defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and channels pipes or spouts belonging to any house or building and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

LANDS.

Power to
take lands
referenced.

58. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they require for the purposes of the tramways and street works by this Act authorised or (in the case of the widening or improving of any existing street) for providing space for the erection of buildings adjoining or near to any such street.

Correction
of errors &c.
in deposited

59. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any

lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices (not being members of the town council of the borough) for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Sussex and a duplicate thereof with the town clerk of the borough and such certificate and duplicate shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

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 plans and
 book of re-
 ference.

60. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Limitation of
 time for com-
 pulsory
 purchase of
 lands.

61. In settling any question of disputed purchase-money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of December one thousand nine hundred and two if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensa-
 tion in case
 of recently
 altered
 buildings.

62. The Corporation may for the purposes of this Act in addition to any other lands they are authorised to acquire and hold acquire by agreement either by purchase or by way of exchange or otherwise or may take on lease and may hold any lands not exceeding in the whole at any one time five acres or any easement right or privilege therein thereunder or thereover (not being an easement right or privilege of water in which persons other than the grantors have an interest) and the Corporation may upon any such lands erect offices sheds buildings works and conveniences which they may find necessary or convenient for the purposes of the Corporation but the Corporation shall not deal with any such

Power to
 acquire addi-
 tional lands
 by agree-
 ment.

A.D. 1903. lands so as to create or permit a nuisance or construct any generating station thereon.

Consideration for such acquisition.

63. The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Corporation may give or take any money for equality of exchange.

Power to grant easements &c. by agreement.

64. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Restriction on taking houses of labouring class.

65.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income

does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. A.D. 1903.

66. The Corporation may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the street works with respect to the sale by the Corporation to such person of any lands or property (including any street or thoroughfare or any part of a street or thoroughfare appropriated by the Corporation under the powers of this Act and not required for the street works) for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Corporation for the purposes of this Act. Power to Corporation to make agreements with owners of property &c.

67. The Corporation may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired by them under this Act and may sell and exchange and dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain sell &c. lands.

68. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :— Owners may be required to sell parts only of certain buildings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Third Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of

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them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties” :

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs

charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner : A.D. 1903.

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

FINANCE.

69. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on the following securities and for the following purposes the following sums (that is to say) :— Power to borrow.

On the security of the borough fund and borough rate—

- (A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose ;

A.D. 1903.

On the security of the tramway revenue and borough fund and borough rate—

- (B) For the construction of the tramways and for and in relation to tramway purposes including the purchase of lands any sums not exceeding in the whole one hundred and twenty-five thousand seven hundred and twenty-eight pounds;
- (c) With the approval of the Board of Trade such further moneys as the Corporation may require for or in relation to the tramway undertaking of the Corporation; and

On the general district fund and rate—

- (D) For street works including the purchase of lands any sum or sums not exceeding in the whole forty thousand pounds;
- (E) With the approval of the Local Government Board such further moneys as the Corporation may require for the purposes of this Act other than tramways:

And in calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing shall not be restricted by any of the provisions of the Public Health Acts:

The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority (except where the same are in this Act expressly altered or varied) shall apply in the case of all mortgages granted by the Corporation under this Act as if they were with necessary modifications re-enacted in this Act:

Provided always that the respective mortgagees shall be entitled one with another to their respective proportions of the revenue fund and rate comprised in their mortgages respectively according to the respective sums in such mortgages mentioned to be advanced by such mortgagees respectively and to be repaid the sum so advanced with interest without any preference one above another by reason of the priority of advancing such moneys or the dates of any such mortgages respectively.

Repayment
of borrowed
moneys.

70. All moneys borrowed under the powers of this Act for the purposes respectively mentioned in the following subsections of the section of this Act the marginal note whereof is “Power to borrow” shall be repaid within any period not exceeding

the following respective periods from the respective dates of the borrowing of such moneys respectively and which periods are herein-after respectively referred to as “the prescribed period” (that is to say):—

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 —

- For the purpose in subsection (A) five years;
- For the purposes in subsection (B) thirty years;
- For the purposes in subsection (C) such period as the Board of Trade may sanction;
- For the purposes of subsection (D) sixty years;
- For the purposes of subsection (E) such period as the Local Government Board may sanction.

71. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and subject to the provisions of this Act the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made:

Mode of
 payment off
 of money
 borrowed.

Provided that it shall not be obligatory on the Corporation in the case of moneys borrowed for tramway purposes to commence any such repayment by instalments or to set apart or appropriate any moneys to or for a sinking fund under this Act until the expiration of one year after the tramways or some part of the tramways by this Act authorised have been completed and opened for public traffic.

72.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

Sinking
 fund.

- (A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or
- (B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is

A.D. 1903.

formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such

increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided always that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct. A.D. 1903.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

73. If the Corporation pay off any part of any money borrowed by them under the powers of this Act otherwise than by means of instalments appropriations or annual repayments or a sinking fund or out of the proceeds of the sale exchange or disposition of lands or out of fines or premiums on leases or other moneys received on capital account not being borrowed moneys they may re-borrow the same and so from time to time Provided that all moneys so re-borrowed shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing shall have been made and any amounts from time to time

Power to
re-borrow.

A.D. 1903. — re-borrowed shall be deemed to form the same loan as the moneys in lieu of which such re-borrowing shall have been made and the obligations of the Corporation with respect to the repayment of such moneys shall not be in any way affected by such re-borrowing.

Corporation
not to regard
trusts.

74. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had notice (express or implied) of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss mis-application or non-application of any of such money.

Protection
of lender
from inquiry.

75. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Application
of revenue.

76. The Corporation shall apply all moneys received by them on revenue account in respect of their tramway undertaking as follows:—

- (1) In payment of the working and establishment expenses and cost of maintenance:
- (2) In payment of the interest on money borrowed by them for tramway purposes:
- (3) In providing the requisite instalments or sinking fund payments in respect of the moneys borrowed for those purposes:
- (4) In providing if the Corporation think fit a reserve fund and a renewal fund for the purposes of the tramway undertaking by setting aside such sums as they from time to time think reasonable and investing the same in securities which the Corporation are by the section of this Act of which the marginal note is "Sinking fund" authorised to invest moneys set apart under that section such funds shall be applicable as regards the reserve fund to answer any

deficiency at any time occurring in the tramway revenue or to meet any extraordinary claim demand or liability at any time arising against or upon the Corporation in respect of their tramway undertaking and as regards the renewal fund to defray the cost of any alteration or renewal of any of the tramways : A.D. 1903.

- (5) In extending and developing the tramway undertaking and paying other expenses of the Corporation in relation thereto not being expenses properly chargeable to capital :
- (6) Any deficiency in the revenue of the tramway undertaking of the Corporation not answered out of the reserve fund shall be from time to time made good out of the borough fund and borough rate made next after each such deficiency is ascertained.

77.—(1) The town clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Annual re-
turn to Local
Government
Board with
respect to
sinking
fund.

A.D. 1903.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Expenses of
execution of
Act.

78. All expenses incurred by the Corporation in carrying into execution the provisions of this Act except such of them as are properly chargeable to capital and payable out of borrowed moneys and except expenses incurred for or in relation to tramways shall be paid out of the district fund and general district rate.

All expenses incurred for or in relation to tramways shall be paid out of the tramway revenue so far as the same is sufficient therefor and subject thereto out of the borough fund or borough rate.

Saving
existing
charges.

79. Nothing in this Act shall prejudicially affect any charge on the borough fund and borough rate or district fund or general district rate by way of mortgage or otherwise subsisting at the passing of this Act and every mortgagee or incumbrancer or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the property subject to his charge as if this Act had not been passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or other security granted created or issued under this Act.

Audit of
accounts.

80. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend and apply to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

MISCELLANEOUS.

A.D. 1903.

81. Proceedings for the recovery of any sum not exceeding fifty pounds demanded under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of sums under fifty pounds.

82. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Act.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS FOR GENERATING STATION.

Certain lands belonging to the Corporation bounded on the north by the backs of the houses and premises fronting respectively on Tower Road and Park Road on the east by the backs of houses and premises fronting on Park Road on the south by the backs of houses and premises fronting respectively on Lyndhurst Road and the roadway known as Providence Terrace and being the lands now used by the Corporation as a depôt or yard for sanitary purposes and for an electric light station.

THE SECOND SCHEDULE.

TOLLS FOR ANIMALS GOODS &c.

<i>Animals.</i>	Per Mile.	
	<i>s.</i>	<i>d.</i>
For every horse mule or other beast of draught or burden -	-	0 6
For every ox cow bull or head of cattle - - -	-	0 6
For every calf pig sheep or other small animal - -	-	0 3
<i>Goods and Minerals.</i>	Per Ton per Mile.	
	<i>s.</i>	<i>d.</i>
For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways -	0	2
For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specially classified herein and for heavy iron castings including railway chairs	0	2½
For all timber or wood sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - -	-	0 3
For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classified herein - - - - -	-	0 4
For every carriage of whatever description one shilling per mile.		

Per Ton A.D. 1903.
per Mile. —
s. d.

Single Articles of Great Weight.

For the carriage of any boat iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Corporation or their lessees may think fit not exceeding - - 1 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Corporation or their lessees may think fit.

Small Packages.

Any
Distance.
s. d.

For any parcel not exceeding seven pounds in weight - - 0 3

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - 0 5

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight - - - 0 7

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight - - - 0 9

For any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the Corporation or their lessees may think fit:

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Regulations as to Rates.

For goods minerals or animals conveyed on the tramways for a less distance than three miles the Corporation or their lessees may demand rates and charges as for three miles;

For the fraction of a ton the Corporation or their lessees may demand rates according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton;

With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight;

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

A.D. 1903

THE THIRD SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE REQUIRED
BY THE CORPORATION.

Parish.	Numbers on deposited Plans.
Parish and borough of Worthing	2 7 8 12 13 14 15 26 27 33 33A 53

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